Whereas, by the seventy-third section of an act entitled "An Act to provide a government for the Territory of Hawaii", approved April 30, 1900, it was, among other things, provided as follows: "That subject to the approval of the President, all sales, grants, leases, and other dispositions of the public domain and agreements concerning the same, and all franchises granted by the Hawaiian government in conformity with the laws of Hawaii, between the 7th day of July, 1898, and the 28th day of September, 1899, are hereby ratified and confirmed"; and,

Whereas, it appears by the certificate of Sanford B. Dole, President of the Republic of Hawaii, which certificate bears date the 23rd day of May, A.D. 1900, that the Kohala & Hilo Railway Company, organized to build, construct and operate railroads from the Port of Hilo, through the districts of Hamakua and Kohala to the Port of Kawaihae or other seaport in the district of Kohala, Island of Hawaii, Hawaiian Islands, was incorporated on the 26th day of June, A.D. 1899, under a charter of incorporation, a copy whereof is attached to said certificate; and that said incorporating and granting of said charter of incorporation were made in conformity with the general incorporating acts of the Republic of Hawaii, and that the granting of the franchise conferred thereby, and all acts done and proceedings taken in the premises were done and taken in conformity with the laws of the Republic of Hawaii;

Now, therefore, in conformity to the provision of the act aforesaid, the said franchise granted by the Hawaiian government to the Kohala & Hilo Railway Company is hereby approved.

/s/ WILLIAM McKINLEY

/s/ JWG

(1300)